

Court No. - 39

Case :- WRIT - C No. - 35571 of 2022

Petitioner :- Durvesh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Mrs. Sunita Agarwal,J.

Hon'ble Vipin Chandra Dixit,J.

Learned counsel for the petitioner prays for adjournment for the day to serve copy of the writ petition to the learned counsel for the respondent nos. 2 & 3.

Put up as fresh on 4.1.2023.

Order Date :- 9.12.2022

P.P.

Court No. - 21

Case :- WRIT - C No. - 35571 of 2022

Petitioner :- Durvesh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner submits that he has served a copy of the writ petition on Sri Madan Mohan Chaurasiya, learned counsel for respondents 2 and 3.

List as fresh on 11.1.2023 showing name of Sri Madan Mohan Chaurasiya as counsel for respondents 2 and 3.

Order Date:- 4.1.2023

CS/-

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 35571 of 2022

Petitioner :- Durvesh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The petitioner has asserted in paragraph 11 of the writ petition that he was not served any notice by the respondent in relation to assessment proceeding nor the assessment order. Even copy of the assessment order was not provided to him when he tried to obtain the same from the office of respondent No.3.

Having regard to the aforesaid assertions, we direct respondent Nos.2 and 3 to file their personal affidavits disclosing complete facts. In case there is no final assessment order in existence or if it has not been served on the petitioner, respondent No.2 will disclose the remedial measures which he proposes to take so that similar mistake is not repeated by the department in other cases.

List on 18th January, 2023 as a fresh case.

As counsel for the electricity department is not present, we require the Registrar (Compliance) to communicate the instant order to respondent Nos.2 and 3 for necessary compliance.

Order Date :- 11.1.2023

D. Tamang

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

Court No. - 21

Case :- WRIT - C No. - 35571 of 2022

Petitioner :- Durvesh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sunil Kumar

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Vikram D. Chauhan, J.

The instant petition has been filed challenging the recovery citation dated 20.09.2022 issued by respondent No. 5 for recovery of a sum of Rs. 8,61,555/- from the petitioner towards electricity dues in a case of theft of electricity.

On 11.01.2023, we have passed following order:-

"The petitioner has asserted in paragraph 11 of the writ petition that he was not served any notice by the respondent in relation to assessment proceeding nor the assessment order. Even copy of the assessment order was not provided to him when he tried to obtain the same from the office of respondent No.3.

Having regard to the aforesaid assertions, we direct respondent Nos.2 and 3 to file their personal affidavits disclosing complete facts. In case there is no final assessment order in existence or if it has not been served on the petitioner, respondent No.2 will disclose the remedial measures which he proposes to take so that similar mistake is not repeated by the department in other cases.

List on 18th January, 2023 as a fresh case.

As counsel for the electricity department is not present, we require the Registrar (Compliance) to communicate the instant order to respondent Nos.2 and 3 for necessary compliance."

In compliance of the above order, respondent no. 2 has filed his personal affidavit. He is also present personally in Court. In the affidavit, it is admitted that the impugned recovery has been issued without there being any final assessment order in existence. It is also stated in the affidavit that disciplinary proceedings have been drawn against the two Executive Engineers and one worker found prima facie guilty of lapses in complying with the procedural requirements laid down under the Electricity Supply Code, 2005. It is also stated that the

recovery against the petitioner has been withdrawn by sending a communication to ADM (Revenue), District- Etawah on 14.01.2023.

The affidavit further mentions that respondent no. 2 has issued a circular letter to all subordinate officers giving strict instructions to them to comply with the provisions of Sections 6.8 and 8.1 of the Electricity Supply Code, 2005 while making assessments.

Two of the directions which are noteworthy are that the checking team would take at least two photographs of the site where an unauthorized use of electricity is reported and will also prepare a video film and it shall be shown to the consumer on any date convenient to the parties. These instructions, in our opinion, will go a long way in reducing the controversy as to whether unauthorized use of electricity was made by the consumer or not. We feel that the said instructions should also be followed by other distribution companies by issuing appropriate directions to all concerned officers.

Shri M.C. Chaturvedi, learned Additional Advocate General ensures the Court that he will communicate the said aspect to the Chairman, UPPCL, so that these guidelines are followed by all distribution companies.

Having regard to the fact that the impugned recovery has already been withdrawn, no further direction is required to be issued in the instant case. We hope and trust that respondent no. 2 will ensure that all cases where proper procedure has not been followed, will be reviewed and in such matters, recovery proceedings will be withdrawn without waiting for this Court to intervene in the matter.

The petition stands disposed of accordingly.

Order Date :- 18.1.2023
VMA

(Vikram D. Chauhan, J.) (Manoj Kumar Gupta, J.)